



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

MAR 23 2001

DOT-E 12183
(FIRST REVISION)

EXPIRATION DATE: June 30, 2001

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Connecticut Yankee Atomic Power Company (CYAPC)
East Hampton, CT

2. PURPOSE AND LIMITATION:

a. This exemption authorizes the transportation in commerce of four steam generator subassemblies (SGSA) from the Haddam Neck Plant to the Chem-Nuclear Systems, Inc. (CNSI) Waste Management Facility located in Barnwell, SC. This exemption authorizes the SGSA to be classified as surface contaminated objects, class II (SCO-II), and transported in non-specification packages under a transport plan which provides an equivalent level of safety to the packages and procedures specified in Title 49 of the Code of Federal Regulations. This exemption provides no relief from the Hazardous Material Regulations (HMR) other than as specifically stated herein.

b. The safety analysis performed in the development of this exemption only considered the hazards and risks associated with transportation in commerce.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.

4. REGULATIONS FROM WHICH EXEMPTED:

a. Section 173.403 in so far as the fixed and non-fixed contamination levels for SCO-II are waived for the SGSA specified in the exemption application.

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- b. Section 173.427(a) in so far as the requirement that the SCO-II, must be transported in the packaging referenced is waived. The SGSA specified in the exemption application is authorized to be transported in non-specification packages on conveyances that exceed the specified quantity limits under a specified transport plan which provides equivalent safety to the packages and procedures required by the HMR.
5. BASIS: This exemption is based on the application of CYAPC dated November 5, 1998 and additional technical data submitted on June 3, 1999 which were submitted in accordance with § 107.105 and additional data that was submitted January 22, 2001.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Radioactive material, surface contaminated object	Class 7	UN2913	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING -

(1) Under the provisions of this exemption, the SGSA and its personnel barrier are considered to be a non-specification package which, when transported in accordance with the CYAPC transport plan, provide an equivalent level of safety to the packaging authorized under the HMR.

(2) The contamination levels and radionuclides present on each SGSA must be consistent with the levels identified in CYAPC's application and additional technical data submitted.

(3) To maximize radiation protection, each SGSA must be prepared for shipment by welding or bolting shut all nozzles, instrument penetrations and mechanical enclosures using closure plates. Prior to shipment, contamination surveys will be conducted. All areas with loose contamination that is in excess of DOT requirements (22 dpm/cm² for Beta & Gamma; 2.2 dpm/cm²

for Alpha) will be decontaminated or will be treated with fixative and/or paint.

(4) All lifting mechanisms must be removed or rendered inoperable.

b. OPERATIONAL CONTROLS -

(1) The SGSA must be consigned as exclusive use under the provisions of § 173.427(a)(6).

(2) All controls, provisions and routes specified in Chem-Nuclear Systems, Inc. document entitled "Transportation and Emergency Response Plan for Connecticut Yankee Power Company, Haddam Nuclear Plant Steam Generator Subassembly Project, Project No. 44010, dated January 9, 2001 must be followed.

c. COMMUNICATIONS -

(1) The package must be plainly and durably marked "DOT-E 12183" in accordance with § 172.301(c).

(2) The package must be marked, labeled, placarded in accordance with the provisions of § 173.427(a)(6) for SCO required to be shipped as exclusive use.

8. SPECIAL PROVISIONS: A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

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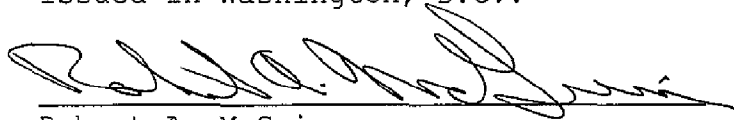
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

MAR 23 2001
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, SW, Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: RBOYLE